

25STCV14223 25STCV14223

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-07-29

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C516%2C07%2F29%2F2026

Source SHA-256: 606d9593d8410ad386d42c43470e038341fd93fc5fa82f8a54d9e6a82fdb7848

Case Number: 25STCV14223 Hearing Date: July 29, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: July 29, 2026

Case Name: Creditors Adjustment Bureau,
Inc. v. TCS Building Solution Inc., et al.

Case

No.: 25STCV14223

Matter: Other Entry of Stipulated Judgment

Moving

Party: Plaintiff Creditors
Adjustment Bureau Inc.

Responding Party: None

Tentative

Ruling: Plaintiff Creditors

Adjustment Bureau Inc.'s motion is granted in part and denied in part.

Plaintiff Creditors Adjustment

Bureau Inc. ("Plaintiff") brought this action against

Defendants

TCS Building Solution Inc also known as TCS Code Solution, TCS Building

Solution

Inc. also known as TCS Code Solution, The Code Solution, also known as TCS Code

Solution

(collectively "Defendants"), and Does 1 through 10. The Complaint alleges four causes

of

action for: (1) breach of contract; (2) breach of implied warranty of habitability; (3) nuisance;

(4)

intentional infliction of emotional distress; and (5) negligence.

Plaintiff moves for the Court to enter

a stipulated judgment against the Defendants in the

amount

of \$142,595.04 and costs of \$1,873.82. Defendants did not file an opposition.

Legal Standard

The

Court is authorized to enter judgment pursuant to the

stipulated settlement. (Code Civ. Proc. § 664.6.) In reviewing a motion to

enforce a settlement, the Court determines "whether the parties entered into a valid and binding settlement." (Hines v. Lukes (2008) 167

Cal.App.4th 1174, 1182.) "A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. [Citations.] The court ruling on the motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard.

[Citations.] If the court determines that the parties entered

into an enforceable settlement, it should grant the motion and enter a

formal judgment pursuant to the terms of the settlement." (Id. at

pp. 1182-1183; see also Osumi v. Sutton (2007) 151 Cal.App.4th

1355, 1357 ["Strong public policy in favor of the settlement of civil cases gives the trial court, which approves the settlement, the power to enforce it"].)

Strict

compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under section 664.6. (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.) The party seeking to enforce a settlement “must first establish the agreement at issue was set forth ‘in a writing signed by the parties’ (§ 664.6) or was made orally before the court.” [Citation.]” (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 304.)

Analysis

Plaintiff

moves for the Court to enter a stipulated judgment pursuant to Code of Civil Procedure section 664.6.

On July 1, 2025, the parties signed a stipulated judgment (“Stipulation”). (Hernandez Decl., ¶ 3; Ex. A.) However, Plaintiff contends that on July 15, 2025, Defendants breached the Stipulation by not paying Plaintiff. (Id. at ¶ 4.) The Stipulation between the parties states that Defendants shall pay Plaintiff,

the principal sum of \$119,292.22, together with interest thereon at the rate of ten percent (10%) per annum from the due date stated in the Complaint to the date of first payment of said Stipulation in the sum of \$8,062.47, interest thereon at the rate of ten percent (10%) per annum on the declining balance in the sum of \$12,253.48, costs, including appearance fees, in the sum of \$1,786.87. and attorney's fees in the sum of \$1,200.00 for a total sum of \$142,595.04.

(Hernandez Decl., Ex. A.)

Defendants agreed to pay \$5,941.46 each month to Plaintiff starting on July 15, 2025, through June 15, 2027. (Ibid.) Further, the Stipulation states that if payment was not made within 10 days of written notice, Plaintiff would seek the Court to enter judgment against Defendants in the amount of \$142,595.04. Plaintiff sent Defendants written correspondence pursuant to the stipulation stating that payment was not made on August 14, 2025. (Hernandez Decl., Ex. B.)

However,

the Court notes that Plaintiff seeks costs of \$1,873.82; this amount is not included in the stipulated judgment. Thus, the Court cannot enforce the Stipulation beyond what is presented before the Court.

Therefore,

the Court enters judgment in favor of Plaintiff and against Defendant in the amount of \$142,595.04.

Conclusion

Plaintiff

Creditors Adjustment Bureau Inc.'s motion for entry of stipulated judgment is granted in the amount of \$142,595.04.